

Sanctions

Defendants are seeking sanctions in the amount of \$1,782 based on 5.5 hours of work by an attorney at \$300 an hour and \$132 in costs. The 5.5 hours of attorney time is based on 2.5 hours to prepare the motions to compel, two hours to prepare a reply to Plaintiff's Opposition and one hour to prepare and attend a hearing on the motion. Plaintiff did not file an opposition. Thus, Defendants have neither drafted nor filed a reply. Additionally, no hearing has occurred yet. Accordingly, Defendants request for sanctions is granted but reduced. Plaintiff is ordered to pay \$882 in reduced sanctions to Pascuzzi, Pascuzzi & Stoker, A Professional Corporation, within 30 days of the service of the minute order.

Tentative Ruling

5

(37)

Tentative Ruling

Re: **Hubbard v. Agemark Corporation**
Superior Court Case No. 25CECG05886

Hearing Date: August 4, 2026 (Dept. 501)

Motion: By Defendants to Compel Arbitration, or in the alternative, to Stay the Proceedings

If oral argument is timely requested, it will be entertained on Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.

Tentative Ruling:

To stay the matter pending resolution of *Leeper v. Shipt, Inc.* (2025) 566 P.3d 234 in the California Supreme Court.

A status conference is to be held Thursday, December 3, 2026 at 3:30 p.m. in Department 501. Defendants are to file a status update as to *Leeper v. Shipt, Inc.* no later than November 16, 2026.

Explanation:

A trial court has discretion to stay an action in the interests of justice and judicial economy. (Code Civ. Proc., § 128; *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 141; *Landis v. North American Co.* (1936) 299 U.S. 248, 254.) A stay is appropriate where cases which are deemed dispositive to pivotal issues are pending resolution in the California Supreme Court. (*Blue Chip Properties v. Permanent Rent Control Bd.* (1985) 170 Cal.App.3d 648, 655.)

Here, the issue of whether a Private Attorneys General Act ("PAGA") necessarily includes individual and non-individual claims and whether a plaintiff may bring only a representative PAGA claim is currently pending in the California Supreme Court. (*Leeper v. Shipt, supra*, 566 P.3d 234; *Rodriguez v. Packers Sanitation Services Ltd.* (2025) 567 P.3d 1272.) This will address a split in authority. The decision in *Leeper v. Shipt, Inc.* will be dispositive to the issue of compelling arbitration here. As such, the court stays the proceedings pending resolution of *Leeper v. Shipt, Inc.* in the California Supreme Court.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/03/26 .
(Judge's initials) (Date)